

# SENATE BILL No. 221

---

## DIGEST OF INTRODUCED BILL

**Citations Affected:** IC 16-19-4-11; IC 25-26-24.5; IC 34-30-2.1-383.2.

**Synopsis:** Pharmacist treatment by standing order. Requires the state health commissioner to issue a standing order, prescription, or protocol to allow a pharmacist to test, treat, or prescribe, if specified requirements are met. Provides a pharmacist with civil immunity in the testing, treating, or prescribing unless the pharmacist's actions constitute gross negligence, willful or wanton misconduct, or intentional wrongdoing. Requires the Indiana board of pharmacy to adopt rules concerning a pharmacist testing, treating, or prescribing for individuals.

**Effective:** Upon passage; July 1, 2026.

---

---

## Charbonneau

---

---

January 8, 2026, read first time and referred to Committee on Health and Provider Services.

---

---



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

## SENATE BILL No. 221

A BILL FOR AN ACT to amend the Indiana Code concerning professions and occupations.

*Be it enacted by the General Assembly of the State of Indiana:*

1       SECTION 1. IC 16-19-4-11, AS AMENDED BY P.L.1-2022,  
2       SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
3       JULY 1, 2026]: Sec. 11. (a) The state health commissioner or the  
4       commissioner's designated public health authority who is a licensed  
5       prescriber ~~may~~, **shall**, as part of the individual's official capacity, issue  
6       a standing order, prescription, or protocol that allows a pharmacist to  
7       administer, ~~or~~ dispense, **test, treat, or prescribe** any of the following:

8               (1) An immunization that is ~~recommended by the federal Centers~~  
9               **for Disease Control and Prevention Advisory Committee on**  
10              ~~Immunization Practices~~ **approved or authorized by the federal**  
11              **Food and Drug Administration** for individuals who are not less  
12              than eleven (11) years of age.

13              (2) A smoking cessation product. However, the pharmacist must  
14              inform the patient that the patient must have a follow-up  
15              consultation with the patient's licensed prescriber.

16              (3) **Point of care testing that has been approved or authorized**  
17              **by the federal Food and Drug Administration and categorized**



as Clinical Laboratory Improvement Amendments (CLIA)-waived under 42 U.S.C. 263a for the following conditions:

(A) COVID-19.

(B) Group B streptococcus.

(C) Respiratory syncytial virus (RSV).

(D) Influenza.

(4) A prescription for, including the dispensing of, a medication that meets the following:

(A) Is indicated for the treatment of a diagnosed condition.

(B) Is authorized by the federal Food and Drug Administration for treatment of the diagnosed condition.

(C) Is included on a protocol list that is established by the Indiana board of pharmacy, in consultation with the state department.

(b) This subsection does not apply to a pharmacist. The state health commissioner or the commissioner's designated public health authority who is a licensed prescriber may, as part of the individual's official capacity, issue a standing order, prescription, or protocol that allows an individual who is licensed, certified, or registered by a board (as defined in IC 25-1-9-1), and if within the individual's scope of practice, to administer or dispense an immunization that is recommended by the federal Centers for Disease Control and Prevention Advisory Committee on Immunization Practices approved or authorized by the federal Food and Drug Administration for individuals who are not less than eleven (11) years of age.

(c) A standing order described in subsection (a) or (b) or (e) must include the following:

(1) The purpose of the order.

(2) The eligible recipients.

(3) The geographic area covered by the standing order.

(4) The procedure for administering or dispensing the immunization or product.

(5) A timeline for renewing or updating the standing order.

(d) The state health commissioner or designated public health authority who issues a standing order, prescription, or protocol under subsection (a) or (b) or (e) is immune from civil liability related to the issuing of the standing order, prescription, or protocol.

(e) Notwithstanding subsection (a) and subsection (b), the state health commissioner or the commissioner's designated public health authority may issue a standing order, prescription, or protocol to administer or dispense an immunization that is recommended by the



1 federal Centers for Disease Control and Prevention Advisory  
 2 Committee on Immunization Practices for individuals who are at least  
 3 five (5) years of age. Nothing in this subsection authorizes the state  
 4 health commissioner or the commissioner's designated public health  
 5 authority to:

6 (1) require an individual to receive an immunization for  
 7 COVID-19; or

8 (2) waive or otherwise allow a minor to receive an immunization  
 9 without the consent of the parent or guardian as required under  
 10 IC 16-36-1.

11 This subsection expires at the conclusion of the federal public health  
 12 emergency concerning COVID-19 that was renewed on October 15,  
 13 2021, or any subsequent renewal of the declared federal public health  
 14 emergency concerning COVID-19.

15 SECTION 2. IC 25-26-24.5 IS ADDED TO THE INDIANA CODE  
 16 AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE  
 17 JULY 1, 2026]:

18 **Chapter 24.5. Prescribing, Testing, and Treating by**  
 19 **Pharmacists by Standing Order**

20 **Sec. 1. A pharmacist may administer, dispense, test, treat, or**  
 21 **prescribe any of the following through a standing order issued by**  
 22 **the commissioner of the Indiana department of health under**  
 23 **IC 16-19-4-11:**

24 (1) An immunization that is approved or authorized by the  
 25 federal Food and Drug Administration for individuals who  
 26 are not less than eleven (11) years of age.

27 (2) A smoking cessation product. However, the pharmacist  
 28 must inform the patient that the patient must have a follow-up  
 29 consultation with the patient's licensed prescriber.

30 (3) Point of care testing that has been approved or authorized  
 31 by the federal Food and Drug Administration and categorized  
 32 as Clinical Laboratory Improvement Amendments  
 33 (CLIA)-waived under 42 U.S.C. 263a for the following  
 34 conditions:

35 (A) COVID-19.

36 (B) Group B streptococcus.

37 (C) Respiratory syncytial virus (RSV).

38 (D) Influenza.

39 (4) A prescription for, including the dispensing of, a  
 40 medication that meets the following:

41 (A) Is indicated for the treatment of a diagnosed condition.

42 (B) Is authorized by the federal Food and Drug



Administration for treatment of the diagnosed condition.  
 (C) Is included on a protocol list that is established by the  
 Indiana board of pharmacy, in consultation with the  
 Indiana department of health.

Sec. 2. A pharmacist acting under a standing order described in  
 IC 16-19-4-11(a)(3) and IC 16-19-4-11(a)(4) shall do the following:

- (1) Complete a continuing education course from provider  
 approved by the Accreditation Council for Pharmacy  
 Education (ACPE).
- (2) Maintain records of testing and treatment for at least  
 seven (7) years.
- (3) Report positive test results, as required by the Indiana  
 department of health.
- (4) Provide the patient with written information advising the  
 patient to follow up with the patient's primary care provider  
 or another licensed practitioner.
- (5) If the patient identifies a primary care provider and the  
 patient consents, transmit a summary of the visit, including  
 any test results and prescribed medication, to the identified  
 primary care provider within a reasonable period of time and  
 in a manner that is consistent with federal and state privacy  
 laws.

Sec. 3. A pharmacy technician or pharmacy intern registered  
 under this article may perform specimen collection and administer  
 a test described in section 1(3) of this chapter if the following are  
 met:

- (1) The collection or administration is conducted under the  
 direct supervision of a pharmacist.
- (2) The pharmacist is immediately available on the premises.
- (3) The pharmacist remains responsible for:
  - (A) the interpretation of the test;
  - (B) the prescribing or dispensing of any medication in  
 compliance with section 1 of this chapter; and
  - (C) compliance with the reporting and record keeping  
 requirements set forth in section 2 of this chapter.

Sec. 4. (a) The Indiana board of pharmacy shall adopt rules  
 under IC 4-22-2 to implement this chapter, including rules  
 concerning the following:

- (1) Standardized protocols.
- (2) Reporting requirements.
- (3) Age and dosage limitations.
- (4) Continuing education requirements.



(b) The Indiana board of pharmacy shall consult with the commissioner of the Indiana department of health in the development of the rules described in subsection (a).

**Sec. 5. (a)** This section does not apply to an act or omission that constitutes gross negligence, willful or wanton misconduct, or intentional wrongdoing.

(b) A pharmacist who acts in good faith in compliance with a statewide standing order described in this chapter and the rules adopted under section 4 of this chapter is immune from civil liability for the following:

(1) An act or omission related to the ordering, administering, or interpretation of a test described in section 1(3) of this chapter.

(2) The prescribing and dispensing of medication described in section 1(4) of this chapter.

SECTION 3. IC 34-30-2.1-383.2 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 383.2. IC 25-26-24.5-5 (Concerning a pharmacist ordering, administering, or interpreting tests and the prescribing and dispensing of medication).**

SECTION 4. [EFFECTIVE UPON PASSAGE] (a) As used in this SECTION, "board" refers to the Indiana board of pharmacy.

(b) Before July 1, 2026, the board shall begin the administrative rulemaking process to adopt rules to implement IC 25-26-24.5, as added by this act.

(c) This SECTION expires December 31, 2026.

SECTION 5. An emergency is declared for this act.

